

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 06/09/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m.
If oral argument is requested, the contesting party must specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-05161

CASE NAME: DISCOVER BANK VS. JOHN DATOR

*HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT
PURSUANT TO STIPULATION

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Background

Plaintiff filed a Motion to vacate dismissal and enter judgment pursuant to stipulation.
The Motion and its supporting documents are timely.

Mail service was completed at an address for defense counsel.

This Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$9,167.03, plus costs, and less any credits for payments received.

A notice of conditional settlement was filed on 12/31/24, but no party subsequently filed a request for dismissal. Thus, this case has not been dismissed.

The Defendant made payments of \$1,740.

Costs are \$292. A memo on costs was filed 11/20/25.

Disposition

Plaintiff's Motion is granted to the extent it calls for the entry of judgment under the 664.6 agreement. There was no dismissal, so there's nothing to vacate.

Judgment will be entered in the amount of \$7,719.03.

Plaintiff shall prepare and submit a proposed order and judgment and serve notice of entry of same on defendant.

2. 9:00 AM CASE NUMBER: L24-07531

CASE NAME: CAPITAL ONE N.A. VS. MAHKAYLA HENRY

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address at which Defendant was served with process through substitute service. Defendant has made no effort to indicate that the service of process was invalid. Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$4,506.71, plus costs, less any credits for payments received.

Costs are \$583.61. A memo on costs was filed with the court.

The Stipulated Agreement was filed 11/4/24.

A dismissal was entered on 12/16/24.

Defendant made payments of \$113.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,977.32.

Plaintiff shall prepare and submit a proposed order and judgment and serve notice of entry of same on defendant.

3. 9:00 AM CASE NUMBER: L25-05870

CASE NAME: CAPITAL ONE N.A. VS. AMELIA TANDINCO

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

On 3/11/26, Plaintiff filed an amended Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel for Defendant.

Defendant did not file an opposition to the motion.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall prepare and submit a proposed order and serve notice of entry of order.

4. 9:00 AM CASE NUMBER: L25-05967

CASE NAME: BANK OF AMERICA N.A. VS. JOSE GUILLERMO CASILLAS VEGA SR

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Background

On 3/11/26, Plaintiff filed an amended Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

Defendant did not file an opposition to the Motion.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Set One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall prepare and submit a proposed order and serve notice of entry of order.

5. 9:00 AM CASE NUMBER: L25-06872

CASE NAME: CAPITAL ONE N.A. VS. CHRISTOPHER CUEVAS

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

On 3/11/26, Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," as Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

Defendant did not file an opposition to the Motion.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Set One of Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall prepare and submit a proposed order and serve notice of entry of order.

6. 9:00 AM CASE NUMBER: L25-08198
CASE NAME: JPMORGAN CHASE BANK N.A. VS. CHRIS CHATMAN
*HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER
STIPULATION
FILED BY: JPMORGAN CHASE BANK N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion, on 12/30/25, to vacate dismissal and enter judgment pursuant to stipulation, plus an amended Motion on 1/29/26.

The Motion is unopposed, however, the Motion was originally scheduled to be heard on 3/17/26, and on that date, this court ruled that Plaintiff had not properly noticed Defendant of the motion or the hearing.

The Motion was continued to 6/9/26, 9am, and the court ordered the Plaintiff to provide Defendant notice of the Motion and the hearing.

As of this writing, 6/3/26, Plaintiff has not filed anything reflecting service of the appearance on 6/9/26.

Disposition

This matter will be dropped.

7. 9:00 AM CASE NUMBER: MSL19-02977
CASE NAME: BARCLAYS BANK VS. LYNCH
*HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON THE PLEADINGS FILED BY PLN ON
3/4/26
FILED BY: BARCLAYS BANK DELAWARE
TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Memo of Points and Authorities, and one of costs. The Motion and Memos were timely served by mail on the address for Defendant provided in the Answer.

Plaintiff also filed a declaration reflecting their attempt to meet and confer with Defendant prior to filing of this Motion, as required by CCP 439.

The Motion is unopposed.

Background

Plaintiff's Motion argues that Defendant's Answer both admits the allegations of the Complaint and offers no defense.

The Complaint, alleges common counts, in that Defendant obtained a credit account from Plaintiff, borrowed money on this account, then failed to make payments on the account when they were due, owing a balance of \$1,937.78.

The Complaint is a collections matter, under CRC 3.740, and is not verified.

Defendant, in the Answer filed 6/20/19, marks the box indicating that all statements in the Complaint are true. The Answer reflects nothing else.

The memo on costs reflects costs of \$60.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

If a material allegation of the complaint is not controverted by the answer, then it will be considered as true. *CCP 431.20(a)*.

When a collections case is not verified, "[A] general denial [of the allegations in a complaint] is sufficient but only puts in issue the material allegations of the complaint." *CP 431.30(d)*. Moreover, a defendant may place her denial of the allegations in a complaint on the ground that she "has no information or belief upon the subject sufficient to enable him or her to answer an allegation of the complaint." *CCP 431.30(e)*.

A court can grant a motion for judgment on the pleadings with leave to amend. *CCP 438(h)(1)*. The court must use the standards in deciding whether to granting to leave to amend as it would for a demurrer. *People v. \$20,000 U.S. Currency* (1991) 235

Cal.App.3d 682, 692.

With respect to demurrers, courts are generally quite liberal in allowing amendment. When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

In the instant matter, the Defendant admits all of the allegations in the Complaint and makes no request for leave to amend the Answer.

The court does not find that there exists a reasonable possibility that the deficient Answer can be cured through amendment.

Disposition

Plaintiff’s Motion is granted. Judgment is awarded in the amount of \$1,937.78.

Costs are awarded in the amount of \$60.

Plaintiff shall prepare and submit a proposed order and judgment, and serve notice of entry of same on Defendant.

8. 9:00 AM CASE NUMBER: MSL22-01124
CASE NAME: BANK OF AMERICA, N.A. VS. ALAN DAS NEVES
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: BANK OF AMERICA, N.A.
***TENTATIVE RULING**

Plaintiff filed a Motion for Judgment on the Pleadings (“Motion”), along with a Memo of Points and Authorities, a Memo on Costs, and a Declaration reflecting an attempt to meet and confer. The Motion and Memos were timely served by mail on the address for Defendant provided in the Answer.

There is no evidence that the Declaration was served on the Defendant, but an insufficient declaration of an attempt to meet and confer is not grounds for the denial of a motion for judgment on the pleadings, under CCP Section 439(a)(4).

The Motion is unopposed.

Background

Plaintiff’s Motion argues that Defendant’s Answer both admits the allegations of the

Complaint and offers no defense.

The Complaint alleges common counts in that Defendant obtained a credit account from Plaintiff, borrowed money on this account, then failed to make payments on the account when they were due, owing a balance of \$4,143.88.

The memo on costs reflects costs of \$356.

The Complaint is a collections matter, under CRC 3.740, and is not verified.

However, the Defendant, in the Answer filed 5/23/22, reflects a general denial, states various affirmative defenses, and a lack of sufficient information upon which to ascertain if further defenses exist.

Plaintiff had, though, filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. (See Order filed 2/7/23, (the “Deemed Admitted Order”).)

The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

If a material allegation of the complaint is not controverted by the answer, then it will be considered as true. *CCP 431.20(a)*.

Admissions from the Deemed Admitted Order are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Based upon the Deemed Admitted Order, it is evident that Defendant has

been deemed to admit to the fact of the subject debt and the amount owing, \$4,143.88.

Disposition

Plaintiff's Motion is Granted. Judgment is awarded in the amount of \$4,143.88.

Costs are awarded in the amount of \$356.

Plaintiff shall prepare and submit a proposed order and judgment, and serve notice of entry of same on Defendant.